

Vijay Shankar Rai v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 17 January 2024 · 2024:AHC:7816-DB · Writ-C No. 40075 of 2023 · **Recovery withdrawn; writ disposed for fresh Supply Code assessment.**

HEADNOTE

A writ against a recovery citation for electricity-theft dues was disposed of when the licensee withdrew the citation and stated that a fresh assessment would be made under the U.P. Electricity Supply Code, 2005. The Court passed no further order.

FACTUAL SUMMARY

Vijay Shankar Rai challenged a recovery citation of 20 August 2023 issued by respondent no. 2 for electricity dues in a theft case. He said the final assessment of 27 April 2022 was made without a provisional notice, and he represented on 22 May 2022. On 22 November 2023 the Court restrained coercive action and sought instructions from the Electricity Department. On 17 January 2024 the Department produced the Executive Engineer's letter of 16 January 2024 withdrawing that recovery.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::17.10

Fresh assessment after withdrawal of theft recovery

HOLDING

Once the licensee withdraws the impugned recovery citation for electricity-theft dues and states that a fresh assessment will be passed after following the procedure under the U.P. Electricity Supply Code, 2005, no further order is required and the writ is disposed of. ¶ 2-4

PRINCIPLE TAGS

withdrawn-recovery-fresh-code-assessment

The Electricity Department withdrew the 20.08.2023 theft-recovery citation and, by the Executive Engineer's letter of 16.01.2024, undertook a fresh assessment under the Supply Code; the writ was disposed of without a finding on the dues. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE FINAL ASSESSMENT DATED 27.04.2022, SAID TO HAVE BEEN MADE WITHOUT A PROVISIONAL NOTICE, WAS ILLEGAL

The recovery citation was withdrawn and a fresh assessment was left to the Supply Code procedure. The Court made no finding on the earlier assessment or on the dues. ¶ 2-4